

Here, the court finds sanctions appropriate. “Imposing a monetary sanction against the party that unsuccessfully makes or opposes a motion is mandatory, unless there was substantial justification for the failure to respond or the circumstances make imposing a sanction unjust...If a party then fails to obey the order compelling a response, the judge may make those orders that are just, including imposing a monetary sanction, an issue sanction, an evidence sanction, or a terminating sanction.” (*California Judges Benchbook: Civil Proceedings—Discovery* (Cal CJER 2022), p. 484, §19.12, citing Cal. Code of Civ. Proc. §2031.300, subdivision (c).) Defendant is ordered to pay Plaintiff \$950 in sanctions by October 2, 2026.

4. 9:00 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO, FILED 4/1/26 / CONT'D FROM 9/11/26 IN DEPT 32. SET IN DEPT 20 FOR THIS HEARING ONLY.**
FILED BY: D&A TRANS, INC.,
TENTATIVE RULING:

The parties are ORDERED to engage in good faith meet and confer efforts and provide the court with a joint statement identifying any outstanding discovery issues by November 6, 2026. This motion is continued and will be heard on November 12, 2026, 9:00 a.m. in Department 20, if issues are not resolved.

Plaintiff, D&A Trans Inc., seeks a motion to compel further responses to Requests for Production of Documents, Set Two, Nos. 2, 4-8, 10, 12-18, 20, 22-23, 25-26, 29-30, 32-34, 36, and 38-50. This is one of approximately 6 motions to compel that have been filed by the parties requesting court intervention, two of which were already before this judge.

This court disagrees with Plaintiff’s notion that “where counsel initiated meet-and-confer efforts, requested a conference, clarified the dispute, and sought an extension before filing the motion” represents good faith meet and confer efforts. Plaintiff cites *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431, indicating that further discussions are not required if they would be futile. Yet, the parties did not engage in any discussions about Defendant’s responses to Plaintiff’s requests for production thus it would be premature to render further engagements pointless. “Some effort is required in all cases: there is no exception based on speculation that prospects for informal resolution may be bleak.” (*California Judges Benchbook: Civil Proceedings—Discovery* (Cal CJER 2022), p. 32, §2.25, citing *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1438.)

There must be a "serious effort at negotiation and informal resolution" and "the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1438-1439; See also *Clement v.*

Alegre (2009) 177 Cal.App.4th 1277, 1293.) “Argument is not the same as informal negotiation; attempting informal resolution means more than the mere attempt by the discovery proponent to persuade the objector of the error of his ways; and a reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel. Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (*Clement, supra*, p.1294.) The court does not find the parties have engaged in serious efforts to resolve the issues now before it.

Furthermore, of some guidance to the parties as they engage in good faith discussions related to this Song-Beverly Act case, it would be prudent for the parties to recognize that in general, documents relating to other vehicles of the *same* make, year and model as the subject vehicle, in which the vehicles have the *same* alleged defect or nonconformity as Plaintiff’s vehicle, are relevant and discoverable. (See *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 971; *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 154; *Jensen v. BMW of North America, LLC* (S.D. Cal. 2019) 328 F.R.D. 557, 562.) Requests should be narrowed accordingly and eliminate any guess-work as to what conditions, defects, or nonconformities Plaintiff is seeking data or other documents relating to and Defendant should anticipate compliance therewith.